RESOLUTION NO. 29-2026

A RESOLUTION CALLING A GENERAL MUNICIPAL ELECTION TO BE CONSOLIDATED WITH THE STATEWIDE GENERAL ELECTION TO BE HELD ON NOVEMBER 3, 2026 TO EXTEND THE TERM FOR TEN (10) YEARS AND ALTER THE RATE AND METHOD OF APPORTIONMENT OF THE EXISTING SPECIAL TAX FOR COMMUNITY FACILITIES DISTRICT NO. 2007-1 (CITYWIDE LANDSCAPE MAINTENANCE) AND SETTING RULES AND DEADLINES FOR THE SUBMITTAL OF ARGUMENTS FOR AND AGAINST THE TAX MEASURE

THE CITY COUNCIL
City of Clayton, CA
Community Facilities District No. 2007-1
(Citywide Landscape Maintenance)

WHEREAS, the City of Clayton has established Community Facilities District No. 2007-1 (Citywide Landscape Maintenance), City of Clayton, County of Contra Costa, State of California ("CFD"), authorized the levy of a special tax on real property within the CFD and established an initial appropriations limit for the CFD; and

WHEREAS, the special tax levied within the CFD is set to expire in Fiscal Year 2026/2027; and

WHEREAS, on June 2, 2026, the City Council adopted Resolution No. 13-2026, a Resolution of Consideration, to (i) extend the term of the existing special tax within the CFD for ten (10) years from Fiscal Year 2027/2028 (i.e., beginning July 1, 2027) through Fiscal Year 2036/2037 (i.e., ending June 30, 2037) and (ii) to alter the CFD's rate and method of apportionment of the special tax ("Rate and Method of Apportionment") during those ten (10) years; and

WHEREAS, the City Council scheduled a public hearing on such proposed special tax extension and rate adjustment for July 7, 2026 at which time and place all persons interested, including taxpayers and property owners were invited to appear and be heard, and the City Council considered all written and oral protests made against this proposal; and

WHEREAS, the City Clerk provided due notice of the public hearing as required by Government Code sections 53322 and 53335; and

WHEREAS, at the duly noticed public hearing, less than a majority of the registered voters and less than a majority of the property owners included in the CFD and not exempt from the special tax filed written protests against the proposed extension of the term and alteration of the Rate and Method of Apportionment; and

WHEREAS, at least twelve (12) persons have been registered to vote within the CFD for each of the ninety (90) days preceding the close of the public hearing and, therefore, the vote shall be by registered voters of the CFD, with each voter having one (1) vote; and

WHEREAS, therefore, the City Council wishes to submit the proposed special tax measure ("Measure") to the voters of the CFD as required by Government Code section 53338; and

WHEREAS, the City Council desires to consolidate the General Municipal Election for the Measure described herein with the Statewide General Election to be held on November 3, 2026; and

WHEREAS, the City Council further desires to set rules and deadlines for the submittal of written arguments and rebuttals for and against the Measure.

NOW, THEREFORE, BE IT RESOLVED BY THE CITY COUNCIL OF THE CITY OF CLAYTON THAT:

SECTION 1. Findings and Background. The City Council finds that the preceding recitals are correct and are incorporated into this Resolution.

SECTION 2. Determinations. It is hereby determined by this City Council that:

A. All prior proceedings pertaining to the formation of the CFD and extension and alteration of the Rate and Method of Apportionment proposed herein were valid and taken in conformity with the requirements of the law, and specifically the provisions of the Mello-Roos Community Facilities Act of 1982 (commencing with Government Code section 53311 *et seq.*) (the "Act").

B. The written protests received, if any, do not represent a majority protest as defined by the applicable provisions of the Act and, therefore, the special tax proposed to be extended and altered has not been precluded by majority protest pursuant to Section 53337 of the Government Code.

C. The City Council now submits the question of whether to extend the term and alter the Rate and Method of Apportionment within the CFD as set forth herein to the registered voters of the CFD as required by Government Code section 53326. Each registered voter residing within the CFD shall be entitled to one vote. The Measure will be approved if two-thirds of the votes cast upon the question are in favor thereof.

D. The City of Clayton boundaries are the same as those in the previous City election and there are no proposed changes the authorized services to be provided by the CFD.

SECTION 3. Election. The City Council, pursuant to its right and authority as contained in the California Elections and Government Codes and all other laws governing general law cities, hereby calls a General Municipal Election to be held and consolidated with the Statewide General Election on Tuesday, November 3, 2026 and submits the extension of the term and alteration of the Rate and Method of Apportionment of the existing special tax within the CFD to the qualified electors of the CFD at said General Municipal Election. As set forth in the Resolution of Consideration, Resolution No. 13-2026, the City Council proposes extending the term of the existing special tax for ten (10) years from Fiscal Year 2027/2028 through Fiscal Year 2036/2037, and altering the Rate and Method of Apportionment of the special tax ("Special Tax" or "Measure"). The altered Rate and Method of Apportionment for the Special Tax, is more particularly set forth in attached Exhibit "A".

SECTION 4. Election Consolidation. In accordance with Section 10403 of the California Elections Code, the City requests the Contra Costa County Board of Supervisors consolidate the General Municipal Election on the Special Tax with the Statewide General Election and all other elections being held in the same territory on November 3, 2026. The City requests and authorizes the Contra Costa County elections official to provide the services necessary to implement the election and to consolidate the election on the November 3, 2026 Election Ballot for the County of Contra Costa. The elections official is hereby authorized to take any and all steps necessary for holding the above election. The ballots to be used at the election shall be in the form and content as required by law. The elections official shall perform and render all services and proceedings incidental to and connected with the conduct of the election, including but not limited to, the following:

A. Make such publications as are required by law in connection with the election.

B. Prepare and furnish the necessary election supplies for the conduct of the election.

C. Establish or appoint precincts, voting centers, and election officers for the conduct of the election.

D. Cause to be printed the requisite number of official ballots, sample ballots, voter information guides, tally sheets and other necessary forms.

E. Furnish ballots and voter information guides for the qualified electors of the CFD.

F. Cause the official ballots to be presented to the qualified electors, as required by law.

G. Receive the returns of the election and supplies.

H. Sort and assemble the election material and supplies in preparation for the canvassing of the returns.

I Canvass the returns of the election.

J. Furnish a tabulation of the number of votes given in the election.

K. Conduct and handle all other matters relating to the proceedings and conduct of the election in the manner and form as required by law.

SECTION 5. Ballot Question for the Measure. The City Council, pursuant to its right and authority under California law, does hereby order that the ballot question shall be presented and printed upon the ballot submitted to the qualified voters in the manner and form set forth in this Section 5. On the ballot to be submitted to the qualified voters at the election to be held at the General Municipal Election to be consolidated with the Statewide General Election on Tuesday, November 3, 2026, in addition to any other matters required by law, there shall be printed substantially the following ballot question:

CITY OF CLAYTON - MEASURE: ____.		
CITYWIDE LANDSCAPE MAINTENANCE EXTENSION AND ALTERATION OF RATE OF EXISTING SPECIAL TAX Shall the measure to fund on-going trail system operations and maintenance, roadway landscaping, open space weed abatement, and related services of the Clayton Community Facility District No. 2007-1 (Citywide Landscape Maintenance) by extending the special tax for ten years and amending its rate and method of apportionment of the special tax to $354.54/year per residential and $354.54/acre per non-residential parcels, for FYs 2027-2037, including annual inflationary adjustments to the special tax rates not to exceed 3% per year, and subject to continued citizen's committee oversight, be approved?	**YES** **NO**	

SECTION 6. Impartial Analysis. Pursuant to Government Code section 53327 and Elections Code section 9280, the City Clerk shall transmit a copy of the Measure to the City Attorney, who shall prepare an impartial analysis of the Measure, not to exceed 500 words in length, showing the effect of the Measure on existing law and the operation of the Measure. The City Attorney shall transmit such impartial analysis to the City Clerk's

Office, who shall cause the analysis to be published in the voter information guide along with the ballot measure as provided by law. The impartial analysis shall be filed with the City Clerk by **Wednesday, August 19, 2026**. The impartial analysis shall include a statement indicating whether the Measure was placed on the ballot by a petition signed by the requisite number of votes by the City Council. In the event the entire text of the Measure is not printed on the ballot, nor in the voter information portion of the sample ballot, there shall be printed immediately below the impartial analysis, in no less than 10-font bold type, the following: "**The above statement is an impartial analysis of Measure ____. If you desire a copy of the Measure, please call the election official's office at (925) 673-7300 and a copy will be mailed at no cost to you.**"

SECTION 7. Ballot Arguments and Rebuttals.

A. The City Council authorizes (i) the City Council or any member(s) of the City Council, (ii) any individual voter eligible to vote on the above Measure, (iii) a bona fide association of such citizens, or (iv) any combination of voters and associations, to file a written argument in favor of or against the City Measure, in accordance with Article 4, Chapter 3, Division 9 of the Elections Code of the State of California and may change the argument until and including **Wednesday, August 19, 2026**, after which no arguments for or against the Measure may be submitted to the City Clerk. Arguments in favor of or against the Measure shall each not exceed 300 words in length. Each argument shall be filed with the City Clerk, signed, and include the printed name(s) and signature(s) of the author(s) submitting it, or if submitted on behalf of an organization, the name of the organization, and the printed name and signature of at least one of its principal officers who is the author of the argument.

B. The City Clerk shall comply with all provisions of law establishing priority of arguments for printing and distribution to the voters, and shall take all necessary actions to cause the selected arguments to be printed and distributed to the voters.

C. That pursuant to section 9285 of the Elections Code of the State of California, when the City Clerk's Office has selected the arguments for and against the Measure which will be printed and distributed to the voters, the City Clerk's Office shall send copies of the argument in favor of the Measure to the authors of the argument against, and copies of the argument against to the authors of the argument in favor. The authors or persons designated by them may prepare and submit rebuttal arguments not exceeding 250 words. The rebuttal arguments shall be filed with the City Clerk's Office not later than **Monday, August 24, 2026**. Rebuttal arguments shall be printed in the same manner as the direct arguments. Each rebuttal argument shall immediately follow the direct argument which it seeks to rebut.

D. That the provisions herein shall apply only to the election to be held on November 3, 2026, and shall then be repealed.

SECTION 8. Special Tax Accountability Measures. Pursuant to and in compliance with the provisions of Government Code Section 50075.1, this City Council hereby establishes the following accountability measures pertaining to the levy by the CFD of the proposed Special Tax:

A. The Special Tax shall be levied for the specific purposes set forth in the Resolution of Consideration and Section 9 below.

B. The proceeds of the levy of such Special Tax shall be applied only to the specific applicable purposes set forth in the Resolution of Consideration (Resolution No. 13-2026) and Section 9 below.

C. The City shall establish a separate account into which the proceeds of the Special Tax shall be deposited.

D. The City Manager or his or her designee, acting for and on behalf of the CFD, shall annually file a report with the City Council as required pursuant to Government Code Section 50075.3.

SECTION 9. Additional Actions. The City Manager and City Clerk are hereby authorized and directed to take all necessary and appropriate steps to place the Measure on the ballot. The City may recover the costs of the election and related procedures to place the Special Tax on the ballot from the proceeds of such Special Tax or the existing special tax as an incidental expense of the CFD. The City Council hereby amends Exhibit "A" of Resolution No. 06-2007 to clarify that the election expenses set forth in this Section as permissible costs of the operation and maintenance of the CFD.

SECTION 10. Effective Date. This Resolution shall become effective immediately upon its adoption.

SECTION 11. Public Examination. Pursuant to Section 9295 of the Elections Code, the Measure will be available for public examination for no fewer than ten (10) calendar days prior to being submitted for printing in the voter information guide. The election official shall post notice in the election official's office of the specific dates that the examination period will run.

SECTION 12. Delivery of Resolution to County. The City Clerk's Office shall certify to the passage and adoption of this Resolution and enter it into the book of original resolutions. The City Council directs the City Clerk's Office to deliver copies of this Resolution, including the Measure attached hereto as Exhibit "A", to the Clerk of the Board of Supervisors of Contra Costa County and to the Registrar of Voters of Contra Costa County not later than 88 days prior to the General Municipal Election.

SECTION 13. Severability. If any provision of this Resolution or the application thereof to any person or circumstance is held invalid, such invalidity shall not affect other provisions or applications of the Resolution which can be given effect without the invalid provision or application, and to this end the provisions of this Resolution are severable. The City Council hereby declares that it would have adopted this Resolution irrespective of the invalidity of any particular portion thereof.

PASSED, APPROVED, AND ADOPTED by the City Council of the City of Clayton, California, at a regular public meeting thereof held on the 7th day of July 2026 by the following vote:

AYES: Councilmembers Tillman, Trupiano, Diaz; Vice Mayor Enea; Mayor Wan

NOES:

ABSENT:

ABSTAIN:

THE CITY COUNCIL OF CLAYTON, CA

ATTEST:

Jeff Wan
Jeff Wan (Jul 8, 2026 13:24:40 PDT)

Jeff Wan, Mayor

Melissa Rhodes
Melissa Rhodes (Jul 8, 2026 13:38:34 PDT)

Melissa Rhodes, City Clerk

I certify that the foregoing resolution was duly and regularly passed by the City Council of the City Clayton at a regular meeting held on July 7, 2026.

Melissa Rhodes
Melissa Rhodes (Jul 9, 2026 14:47:37 PDT)

Melissa Rhodes, City Clerk

EXHIBIT “A”

City of Clayton, CA
Community Facilities District No. 2007-1
(Citywide Landscape Maintenance)

Rate and Method of Apportionment of Special Tax

CITY OF CLAYTON
Community Facilities District 2007-1
(Citywide Landscape Maintenance)
RATE AND METHOD OF APPORTIONMENT OF SPECIAL TAX

A special tax will be levied annually on each taxable parcel of land not defined below as an "Exempt Parcel" within the Community Facilities District 2007-1 (Citywide Landscape Maintenance) (the "CFD") and collected in the same manner as ordinary ad-valorem property taxes or in such manner as the City of Clayton City Council or its designee shall determine, including City-originated billing of the affected property owners.

Definitions

The terms hereinafter set forth have the following meanings:
"Taxable Parcels" - Parcels of land within the boundaries of the District that are not included in the "Exempt Parcel" category listed below.
"Exempt Parcels" - Parcels of land owned by a public agency, right-of-way parcels, schools, hospitals, cemeteries, mortuaries, libraries, parks, mineral rights, private roads, pipelines, public parking facilities and common areas.
"Residential Parcels" - Taxable Parcels of land that are classified as either single-family, condominium, townhouse, multi-family or rural residential parcels.
"Non-residential Parcels" - Taxable Parcels that are not classified as "Residential Parcels."
"Special Tax" - The Special Tax allowed to be levied on a property within the CFD, calculated pursuant to the Rate and Method of Apportionment of Special Tax.

Special Tax Formula

A. **Residential Parcels -** An annual Special Tax will be levied on all Residential Parcels, as defined above, at the per parcel tax rate for each Fiscal Year 2027/28 through 2036/37. The annual Special Tax Rate established for Fiscal Year 2027/28 is $354.45 per parcel.

B. **Non-residential Parcels -** An annual Special Tax will be levied on all Non-residential Parcels, as defined above, at the per acre rate for each Fiscal Year 2027/28 through 2036/37. The annual Special Tax Rate established for Fiscal Year 2027/28 is $354.45 per acre or fraction thereof.

Parcel Classification	FY 2027/28 Maximum Rate (1)(2)	Rate Per
Residential Parcels	$354.45	Parcel
Non-residential Parcels	$354.45	Acre or fraction thereof

(1) Actual levy amount is rounded to the nearest even cent for County tax submittal purposes.
(2) Rate subject to the Special Tax Escalation Factor.

Duration of Special Tax Levy

Per Measure B, the Special Tax will be levied annually for a period of ten (10) years commencing with Fiscal Year 2007/08 through and including Fiscal Year 2016/17. Per Measure H, the Special Tax with the same rate methodology was extended for ten (10) years commencing with Fiscal Year 2017/18 through and including Fiscal Year 2026/27. After Fiscal Year 2026/27 the Special Tax may no longer be collected unless extended pursuant to applicable laws, except that a Special Tax that was lawfully levied in or before the final tax year and that remains delinquent may be collected in subsequent years.

Special Tax Escalation Factor

In Fiscal Years 2028/29 through 2036/37, the Special Annual Tax rate may be increased annually by the City of Clayton City Council in an amount not to exceed the full annual adjustment (April to April) in the Consumer Price Index – All Urban Consumers, San Francisco-Oakland-Hayward, CA Area (Base Period 1982-84 = 100) (the "CPI increase"). This escalation factor is applicable if determined by the City to be necessary due to expected or actual increases in the operational and maintenance expenses attributable to the District. Such determination shall be made by action of the City of Clayton City Council, which must occur at a regular public meeting thereof accompanied by a prior recommendation of the citizens' Trails and Landscaping Committee established by the City Council in February 2006 (City Resolution No. 08-2006). In no event shall each annual Special Tax rate in any fiscal year increase by more than three percent (3%) over the previous year.

Relationship to Special Tax of Community Facilities District 1997-1

The District was created to replace Community Facilities District 1997-1 as the new district to levy an annual Special Tax for Citywide Landscape Maintenance purposes for a duration of 10 years, until Measure H extended the total duration to 20 years. The Community Facilities District 1997-1 had a maturity date of June 30, 2007. In order to continue landscaping maintenance for the City of Clayton, the City adopted and approved Resolution 06-2007 on February 20, 2007.

Resolution No. 29-2026 - General Municipal Election to Extend the Term for 10 Years and Alter the Rate and Method of Apportionment of the Existing Special Tax CFD 2007-1

Final Audit Report 2026-07-09

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